

The motion is **granted**. Counsel is directed to serve the order relieving counsel in compliance with CRC 3.1362(d). **Counsel is not formally relieved until the order is served on the client and proof of service is filed with the court.**

3. 9:00 AM CASE NUMBER: C23-03009
CASE NAME: RONALD ABBS, JR. VS. DAVID BOLES
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES**
FILED BY: S&J PROPERTIES, CONSTRUCTION, INC.
TENTATIVE RULING:

Withdrawn by moving party December 4, 2025.

4. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
***HEARING ON MOTION IN RE: CONFIRM REFEREE REPORT AND TO ALLOCATE SALE PROCEEDS**
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Attorney Endy Ukoha-Ajike's motion to impose a lien on this instant partition action on the Paulding Defendants portion of the subject property.

For the following reasons, **Attorney Endy Ukoha-Ajike's motion is granted.**

Factual and Procedural Background

Clients came to an attorney requesting assistance in a title dispute and associated unlawful detainer matter. They signed an agreement granting the attorney a lien on the subject property in exchange for legal services. At the time this legal agreement was signed, John Paulding and Timothy Paulding were residing in real property located at 5648 Burlingame Ave., Richmond, California. This property had belonged to their mother, Shirley Hart and her sister, Thelma Jackson, in joint tenancy.

Shirley Hart had formed a revocable trust and recorded a deed from herself to the Trust. After, she died on August 8, 2021, Thelma Jackson filed an Affidavit of Death of Joint Tenant claiming that the property belonged to her in its entirety. She then sent a letter demanding that John Paulding and Timothy Paulding vacate and hand over possession of the property to her. Subsequently she filed an unlawful detainer action to evict them from the property based on her claim that the property belonged to her.

Attorney Endy Ukoha-Ajike on behalf of John and Timothy Paulding then filed a petition under Probate Code §850 to establish that at least 50% of the property belonged to the Shirley Hart Trust whose Trustee and equal beneficiaries were John and Timothy Paulding. Attorney Endy Ukoha-Ajike on their behalf also mounted a defense to the unlawful detainer action filed by Ms. Jackson. Following a trial on November 3, 2023, Department 15 of this court ruled in their favor on the §850 petition and movant successfully obtained a 50% interest in the Burlingame Avenue property for the Pauldings. Attorney Endy Ukoha-Ajike defeated the unlawful detainer action subsequently. The representation

then ended per the legal services agreement.

On February 23, 2024, Ms. Jackson filed a partition action. On March 4, 2024, the Pauldings sent the attorney notice that they had no further need for his services. The Pauldings opposed the partition action in propria persona. This Court ordered partition of the real property and appointed David W. Martin as Receiver. This property has now sold, and the receiver has filed a declaration and other documents with this Court, seeking to distribute the proceeds of sale. No provision has been made for the fees earned by Attorney Endy Ukoha-Ajike.

Legal Standard for Imposing Liens During a Partition Action

To the extent necessary to grant the relief sought or other appropriate relief, the court shall determine the status and priority of all liens upon the property. (CCP § 872.630(a).) Any party, upon notice to the other parties who have appeared, may move the court to confirm, modify, or set aside the report. (CCP § 873.290(a).) At the hearing, the court may either confirm the report as filed or as the court may modify and enter judgment of partition accordingly or set aside the report and order preparation of a new report and, if necessary, appoint a new referee for this purpose. (CCP § 873.290(a).)

Analysis

The Lien for Attorney's Fees is Valid

A charging lien is an equitable corollary to, and thus inherent in, a contingency fee contract. (*Plummer v. Day/Eisenberg, LLP* (2010) 184 Cal.App.4th 38, 49.) "Unlike a judgment creditor's lien . . . an attorney's lien is a 'secret lien; it is created and the attorney's security interest is protected even without a notice of lien.'" (*Carroll v. Interstate Brands Corp.* (2002) 99 Cal.App.4th 1168, 1172.)

Defendant John Paulding does not argue that he did not sign or understand the subject fee agreement. Thus, it is uncontroverted that Plaintiffs freely assented to the subject fee agreement.

The Fee Agreement is Compliant with the Business and Professions Code § 6147

Defendant John Paulding argues that Attorney Endy Ukoha-Ajike's fee agreement is voidable because of being non-compliant with Business and Professions Code § 6147 under *Arnall*. (Oppo at p. 6: 15-22.) Plaintiff specifically contends that Attorney Endy Ukoha-Ajike's fee agreement was devoid of (1) the contingency fee rate, (2) statement of how the contingency fee will affect costs and client's recovery, (3) representation of what client would be required to pay for services outside the agreement, and (4) statement that the fee is negotiable.

In his Reply, Attorney Endy Ukoha-Ajike points out where in his fee agreement the contingency fee is stated (Page 2, Paragraph 4), where the payment of costs and charges are explained (Page 3, Paragraph 7), where charges not covered by the contingency agreement are explained (Page 2, Paragraph 4 and Paragraph 6), and where it states that the fees are negotiable (Page 2, Paragraph 6). Attorney Endy Ukoha-Ajike in his reply successfully defended Defendant John Pauldings's contentions

Attempted Arbitration

The Court does acknowledge that the subject fee agreement does contain an arbitration provision and Defendant John Paulding's demand for arbitration. (Ukoha-Ajike Decl., Ex. A, section 13; Oppo at p. 6:

24-25.) Attorney Endy Ukoha-Ajike in his declaration states that he has attempted to arbitrate the matter but neither the Alameda nor the Contra Costa Bar Associations currently maintain a fee arbitration program, making the arbitration provision moot. (Ukoha-Ajike Decl. ¶ 6.)

Conclusion

John and Timothy Paulding retained Attorney Endy Ukoha-Ajike to stop Thelma Jackson's efforts to assert a 100% interest in real property and to evict them from the property. The attorney succeeded in establishing a 50% interest in the Trust of which the Pauldings were beneficiaries and ended eviction efforts. Later, Thelma Jackson filed the instant partition action, whereupon the Pauldings dismissed Attorney Endy Ukoha-Ajike and represented themselves. The property in dispute has now been partitioned by sale.

The 50% interest of the Pauldings that was awarded to them in the present action only exists due to the efforts of Attorney Endy Ukoha-Ajike. It would be inequitable not to enforce the signed lien agreement.

Based on the explanation provided above, **Attorney Endy Ukoha-Ajike's motion is granted. The Court orders David Martin appointed Receiver in this matter, to pay the sum of \$110,836.45 to Endy Ukoha-Ajike from the shares of the proceeds of sale of 5648 Burlingame Avenue, Richmond, CA 94804 due to John and Timothy Paulding.**

5. 9:00 AM CASE NUMBER: C24-00492
CASE NAME: THELMA JACKSON VS. JOHN PAULDING
*HEARING ON MOTION IN RE: CONFIRM AND/OR IMPOSE LIEN ON SHARE OF JOHN AND TIMOTHY PAULDING IN PROCEEDS OF SALE
FILED BY: UKOHA-AJIKE, ENDY
TENTATIVE RULING:
See line 4.

6. 9:00 AM CASE NUMBER: C24-00664
CASE NAME: COUNG CHAU VS. RONALD FONG
*HEARING ON MOTION IN RE: LEAVE TO FILED 2ND AMENDED COMPLAINT
FILED BY: CHAU, COUNG VI
TENTATIVE RULING:

Granted, without opposition. Plaintiff is to separately file the proposed Second Amended Complaint attached as exhibit A to the Declaration of Mario A. Moya within ten days after notice of this ruling.

7. 9:00 AM CASE NUMBER: C24-03076
CASE NAME: DEJA JONES VS. JOHN MUIR HEALTH
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: JOHN MUIR HEALTH
TENTATIVE RULING:

Defendant John Muir Health's demurrer to the first amended complaint is **sustained with leave to amend**. Plaintiff has twenty days from notice of entry of the order to file a second amended